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KOSTIANTYN MARS, PRO SE

UNITED STATES DISTRICT COURT
WESTERN DISTRICT OF TEXAS
AUSTIN DIVISION

KOSTIANTYN MARS

Removing Defendant / Movant,

vs.

THE PEOPLE OF THE STATE OF
CALIFORNIA,

Respondent.

Case No.: B2402220

EXHIBIT A
EVIDENCE BINDER IN SUPPORT OF
MOTION TO DISMISS CRIMINAL CASE
B2402220

DATE:
TIME:
DEPT:

EXHIBIT A
EVIDENCE BINDER IN SUPPORT OF
MOTION TO DISMISS CRIMINAL CASE B2402220

Submitted concurrently with:

- Motion to Dismiss (Federal – Western District of Texas)
- Motion to Dismiss (California – Santa Clara Superior Court)

Respectfully submitted,

DATED: April 8, 2026


KOSTIANTYN MARS
Pro Se

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Key Procedural Violations:

Judge Williams denied the defendant and his attorney the opportunity to be heard on the merits of Criminal Case B2402220 and issued a bench warrant, despite both being present in open court and requesting a hearing and dismissal of the case.

This constitutes a violation of due process and denial of access to court. Applicable Law:

- U.S. Const. amend. XIV, § 1 (Due Process Clause)
- 42 U.S.C. § 1983 (Deprivation of constitutional rights under color of law)
- Cal. Const. art. I, § 7(a) (Due Process)
- Procedural due process requires meaningful opportunity to be heard before deprivation of liberty (Mathews v. Eldridge, 424 U.S. 319 (1976))

EXHIBIT A-1

STATEMENT OF DISQUALIFICATION - JUDGE ANDREA FLINT (November 13, 2023)

Description: Statement of Disqualification timely filed against Judge Andrea Flint prior to the issuance of the Domestic Violence Restraining Order dated November 28, 2023.

Date: November 13, 2023

ACCESS FULL DOCUMENT

Full PDF: <https://marsjustice.io/criminal-case/flint-disqualification-2023-11-13.pdf>

Scan QR Code for instant download of the complete document:



1 KOSTIANTYN MARS		FILED NOV 18 2023 Clerk of the Court Superior Court of the State of California BY <u>CLM</u> DEPUTY M. JOHNSON
2 PO BOX 8081		
3 SAN JOSE, CA 95155		
4 (408) 518-0088		
5 CONSTANTINE.MARS@GMAIL.COM		
6 PRO PER		
7		
8 SUPERIOR COURT OF THE STATE OF CALIFORNIA		
9 IN AND FOR THE COUNTY OF SANTA CLARA		
10		
11 KOSTIANTYN MARS	} Case No.: 22FL003144	[Hon. Beth McGowen, Presiding Judge of Superior Court of California [Dept. 79 -- Hon. Andrea Flint, Judge to be served the Disqualification Statement]
12 vs.		
13 HANNA MARS,	} NOTICE OF PETITIONER'S VERIFIED STATEMENT OF DISQUALIFICATION OF SANTA CLARA SUPERIOR COURT JUDGE ANDREA E. FLINT FOR IMPERMISSIBLE CONFLICT OF INTEREST; REQUEST FOR HER DISQUALIFICATION AND RETROACTIVE NULLIFICATION OF HER ORDERS	[Statement of Disqualification and Memorandum of Points and Authorities filed concurrently] (Code Civ. Proc. 170.1(a)(6)(iii); 170.1(a)(3)A; 170.3)
14 Respondent.		
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- 1 -
NOTICE OF DISQUALIFICATION STATEMENT RE: HON. ANDREA E. FLINT
DISSOLUTION OF FAMILY MARS CASE NO.: 22FL003144

EXHIBIT A-2

VOID AB INITIO DOMESTIC VIOLENCE RESTRAINING ORDER SIGNED BY JUDGE FLINT AFTER DISQUALIFICATION (November 28, 2023)

Description: Domestic Violence Restraining Order issued by disqualified Judge Andrea Flint after a timely Statement of Disqualification had been filed, rendering the order void ab initio under California Code of Civil Procedure § 170.4(d).

Date: November 28, 2023

ACCESS FULL DOCUMENT

Full PDF: <https://marsjustice.io/criminal-case/dvro-flint-2023-11-28.pdf>

Scan QR Code for instant download of the complete document:



#E-192

DV-109 Notice of Court Hearing

Check stamp date two when form is filed

Filed
November 28, 2023
Clerk of the Court
Superior Court of CA
County of Santa Clara
22FL003144
By: adarnell

Fill in court name and street address:
Superior Court of California, County of Santa Clara
201 N. First Street
191 N. First Street
San Jose, CA 95113
Family Justice Center
Court fills in case number when form is filed.
Case Number:
22FL003144

Instruction: The person asking for a restraining order must complete items ① and ②. The court will complete the rest of this form.

① Person Asking for Protection
Name: Hanna Mars

② Person to Be Restrained
Name: Konstantin Mars (aka Constantine Mars)

The court will fill out the rest of this form.

The temporary orders which are granted and attached remain in full force and effect while you are in court until your hearing is finished

③ Notice of Hearing
A court hearing is scheduled on the request for restraining orders against the person in ②:

Date: 12/14/2023 Time: 1:30PM
Dept.: 79 Room: _____
Name and address of court if different from above: _____

You may attend your court date remotely, such as by phone or videoconference. For more information, go to the court's website for the county listed above. To find the court's website, go to: www.courts.ca.gov/find-my-court.htm.

④ Temporary Restraining Orders (Any orders granted are attached on form DV-110.)
a. Temporary Restraining Orders (any order requested under Family Code section 6320):
(Check one):
(1) ☒ All granted until the court hearing.
(2) ☐ All denied until the court hearing. (Reasons for denial are given below in b.)
(3) ☐ Partly granted and partly denied until the court hearing. (Reasons for denial are given below in b.)
b. Reasons for denial of some or all of the orders requested on form DV-100.
(1) ☐ The facts given in the request (form DV-100) do not show reasonable proof of a past act or acts of abuse. (Family Code sections 6300, 6320, and 6320.5.)
(2) ☐ The facts given in the request do not give enough detail about the most recent incidents of abuse, including what happened, the dates, who did what to whom, or any injuries or history of abuse.
(3) ☐ Other reasons for denial: _____

Noted Court of California state courts
For address, visit www.courts.ca.gov
Approved by DOJ

Notice of Court Hearing
(Domestic Violence Prevention)

DV-109, Page 1 of 2

Anna Mars
Doc ID: 1a53d8042ede229201018ced69e8020c5308

EXHIBIT A-3

KEY STATEMENTS AND MATERIAL FACTS FROM TRANSCRIPT AND AUDIO RECORDING (EXTORTION OF MONEY AND DOCUMENTS, THREATS OF MALICIOUS PROSECUTION) - HEARING BEFORE JUDGE STEPHEN LOWNEY (February 7, 2024)

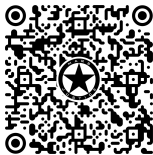
Description: Authenticated excerpts from the official transcript demonstrating coercion under color of law, extortion of 401(k) funds, vehicle title, and minor child's documents, threats of vexatious litigant status, denial of court access, contempt and further malicious prosecution.

Date: February 7, 2024

ACCESS FULL DOCUMENT

Full PDF: <https://marsjustice.io/criminal-case/lowney-hearing-key-statements-2024-02-07.pdf>

Scan QR Code for instant download of the complete document:



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6	KOSTIANTYN MARS, PRO SE				
7					
8					
9	HANNA MARS	)	Case No.: 22FL003144		
10	Plaintiff(s),	)	EXHIBIT B		
11	vs,	)	KEY STATEMENTS &		
12	KOSTIANTYN MARS,	)	MATERIAL FACTS		
13		)	DATE: February 7, 2024		
14	Defendant(s).	)	DEPT: 79		
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1	14	15-16	[00:44:09]	MR. MARS: Is it possible to hear DVROs trial today?	Denial of DVRO trial and final trial date - Denial of access to court on opposing domestic violence restraining orders and termination of marital status
2				JUDGE STEPHEN LOWNEY: No. And the request for a final trial date is denied.	

-1-

Case No. 22FL003144 - Exhibit B - Key Statements and Material Facts - February 7, 2024 Hearing, Judge Lowney

1	1						
2	2						
3	3	2	15	9	[00:47:02]	JUDGE STEPHEN LOWNEY: We are going to vacate the March 5th status conference. We are not going to set a trial.	Removal of status conference and denial of trial setting - Blocking case from resolution
4	4						
5	5						
6	6						
7	7						
8	8	3	12-13	10-20	[00:37:02]	MR. MARS: Do I understand correctly that we can bring this matter to a family status conference?	Denial of settlement conference and final trial - Coercion to surrender custody rights and financial assets
9	9						
10	10						
11	11						
12	12						
13	13						
14	14						
15	15						
16	16	4	19	6-9	[01:02:13]	MS. ROBERTS: I have sent Mr. Mars several emails that he was court-ordered to bring those documents to my office. Mr. Mars refuses to give up anything. His vaccination record, his green card, his passport.	Extortion / coercion to surrender passport, green card, and identity documents of minor child Max Mars
17	17						
18	18						
19	19						
20	20						
21	21						
22	22						
23	23	5	20	3-5	[01:03:35]	JUDGE STEPHEN LOWNEY: You must comply with the orders.	Extortion of child's passport and identity documents under threat of international abduction and threat to child's life
24	24						
25	25						
26	26						
27	27						
28	28						

-2-

Case No. 22FL003144 - Exhibit B - Key Statements and Material Facts - February 7, 2024 Hearing, Judge Lowney

6 21 11-20 [01:07:00] **MR. MARS:** What should I do if my son will die after international abduction, becoming a victim of the war in Ukraine? **Coercion to surrender passport and legal documents of abducted minor child under threat of death**

JUDGE STEPHEN

LOWNEY: You are going to comply.

The request was for court order, Mr. Mars, to deliver to the court all legal documents regarding the minor child.

And you are ordered to comply.

7 7 5 [00:14:14] **MR. MARS:** Child abduction was committed on advice of attorney, ... lying to judge... dismissal of signed emergency screener recommendations. **Child abduction on advice of counsel and obstruction of emergency child safety recommendations**

8 5 16-22 [00:09:17] **MR. MARS:** Professionally supervised reports contain the evidence that the respondent kidnapped my son to an undisclosed location and pulled out a SIM card from my son's phone to block our contact. **Evidence of parental child abduction and intentional isolation of minor child**

JUDGE STEPHEN

LOWNEY: It was an allegation that a SIM card was pulled out. That kidnapping or abduction occurred.

1	1						
2	2	9	12	9	[00:37:02]	JUDGE STEPHEN LOWNEY: So that request is also going to be denied.	Denial of custody review hearing and child abduction prevention orders
3	3						
4	4						
5	5						
6	6	10	5	10	[00:08:14]	MR. MARS: Opposing counsel Nancy Roberts was in a criminal conspiracy with Judge Flint.	Criminal conspiracy between opposing counsel Roberts and prior judge Flint supported by evidence and orders 6/29/2023
7	7						
8	8						
9	9						
10	10						
11	11						
12	12	11	17	3	[00:53:54]	MR. MARS: Judge Flint was in a criminal conspiracy with Roberts and they are coercing me to surrender custody rights.	Coercion to surrender custody rights and parental rights
13	13						
14	14						
15	15	12	17	11	[00:53:54]	JUDGE STEPHEN LOWNEY: None of them have a legal basis. ... If I don't grant this order, what will stop you from continuing to file requests for orders ...	Threat of vexatious litigant order to deny access to court
16	16						
17	17						
18	18						
19	19	13	19	9	[01:02:13]	MS. ROBERTS: He's in violation of the court order. So I'm asking if you will not move, to court sign to re-issue those.	Threat of re-issuance of child's passport and identity documents for international abduction of minor child to Ukraine
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14 19-20 1-27 [01:03:35]

JUDGE STEPHEN LOWNEY: We're talking about documents. You must turn them over.

Extortion of child's passport and identity documents under threats of denial of access to court and malicious prosecution via contempt

MR. MARS: Those orders were done by disqualified Judge Flint.

JUDGE STEPHEN LOWNEY: Yes, and they're valid.

MR. MARS: Those orders were made against the factual and legal basis of the case.

JUDGE STEPHEN LOWNEY: The orders stand.

MR. MARS: I kindly request to stay this order until trial on opposing DVROs will be heard.

JUDGE STEPHEN LOWNEY: Denied. You must comply with the orders.

MR. MARS: Your Honor, my son will be abducted to Ukraine and will never return. There is a war. Max can die.

-5-

Case No. 22FL003144 - Exhibit B - Key Statements and Material Facts - February 7, 2024 Hearing, Judge Lowney

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JUDGE STEPHEN

LOWNEY: I want you to listen to the court. We have just gone over a vexatious litigant analysis. I've asked for further briefing. And I've asked to see all of the conduct in this case regarding filed motions. What is also really relevant to that designation and to the court in general is when you are ordered to do something by the court, that you comply - and that goes with both parties - and you are not complying. It's not good.

MR. MARS: Your Honor, I would love to comply, but first **I need this matter to be heard.**

JUDGE STEPHEN

LOWNEY: You don't understand. So you do not set conditions on when the court orders are to be complied with. You just comply.

MR. MARS: Your Honor, this order **endangers the life of my son**, and the **court denies me to hear this matter.** What should I do?

JUDGE STEPHEN

LOWNEY: The order is valid. You must comply.

MR. MARS: Your Honor,
signature of **disqualified**
Judge Towery, who also
was removed from court
like Flint, cost my mom her
life, put her in terminal
condition, because
respondent with signature
of bribed Judge Towery
kicked 95-year-old senior
woman with disabilities
from home and caused her
death.

JUDGE STEPHEN
LOWNEY: Mr. Mars, you
have to comply.

CERTIFICATION

I, Kostiantyn Mars, declare under penalty of perjury under the laws of the State of California
and the United States of America that the foregoing Exhibit B is a true and accurate summary
of material statements taken from the official transcript of the hearing held on February 7,
2024, before the Honorable Stephen Lowney in Case No. 22FL003144.

All quoted language appears verbatim from the official court transcript. The page numbers and
timestamps referenced in this Exhibit correspond to the professional transcript filed
concurrently herewith.

Executed on April 8, 2026, at Austin, Texas.

DATED: April 8, 2026



KOSTIANTYN MARS
Pro Se

EXHIBIT A-4

TRANSCRIPT AND AUDIO RECORDING - HEARING BEFORE JUDGE STEPHEN LOWNEY (February 7, 2024)

Description: Certified transcript and audio recording of the February 7, 2024 hearing before Judge Stephen Lowney.

Date: February 7, 2024

ACCESS FULL DOCUMENT

Full PDF: <https://marsjustice.io/criminal-case/lowney-hearing-transcript-2024-02-07.pdf>

Scan QR Code for instant download of the complete document:



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7		
8		
9	HANNA MARS	) Case No.: 22FL003144
10	Plaintiff(s),	)
11	vs.	)
12	KOSTIANTYN MARS,	)
13	Defendant(s).	)
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TRANSCRIPT OF HEARING
BEFORE THE JUDGE STEPHEN LOWNEY

Date: February 7, 2024
Prepared from the official court audio recording

APPEARANCES:

For Petitioner Hanna Mars:
Nancy Roberts, Esq.
Assisted by Maria Rekretuyuk, Certified Ukrainian Language Interpreter (Bench No. 700739)

For Respondent Kostiantyn Mars:
Kostiantyn Mars, appearing pro se

-1-

Case No. 22FL003144 - Transcript of Hearing Before the Judge Stephen Lowney - February 7, 2024

1 **JUDGE STEPHEN LOWNEY:** The orders stand.

2 **MR. MARS:** I understand, Your Honor, but I kindly request to stay this order until trial on
3 opposing DVROs will be heard.

4 **JUDGE STEPHEN LOWNEY:** Denied. You must comply with the orders.

5 **MR. MARS:** Your Honor, my son will be abducted to Ukraine and will never return. There is a
6 war. Max can die. May I explain with evidence?

7 **JUDGE STEPHEN LOWNEY:** I want you to listen to the court. We have just gone over a
8 vexatious litigant analysis. I've asked for further briefing. And I've asked to see all of the
9 conduct in this case regarding filed motions. What is also really relevant to that designation
10 and to the court in general is when you are ordered to do something by the court, that you
11 comply - and that goes with both parties - and you are not complying. It's not good.

12 **MR. MARS:** Your Honor, I would love to comply, but first I need this matter to be heard.

13 **JUDGE STEPHEN LOWNEY:** You don't understand. So you do not set conditions on when
14 the court orders are to be complied with. You just comply.

15 **MR. MARS:** Your Honor, this order endangers the life of my son, and the court denies me to
16 hear this matter. What should I do?

17 [01:05:23]

18 **JUDGE STEPHEN LOWNEY:** You should have appealed the order. We've gone over this.
19 You disagree with it, the order was heard, you disagree with it, it was valid, and the law
20 provides a remedy, and that remedy is appeal. You did not appeal. The order is valid. You must
21 comply.

22 **MR. MARS:** Your Honor, signature of disqualified Judge Towery, who also was removed
23 from court like Flint, cost my mom her life, terminal condition, because respondent with
24 signature of bribed Judge Towery kicked 95-year-old senior woman with disabilities from
25 home and caused death.

26 **JUDGE STEPHEN LOWNEY:** So, Mr. Mars, you have to comply.

27 **MR. MARS:** Your Honor, could we hear this matter?

28 **JUDGE STEPHEN LOWNEY:** I'm hearing it. I'm hearing it right now.

MR. MARS: With evidence, your Honor. With evidence that confirms that the respondent
doesn't have any bond with the United States and abducts my son to Ukraine.

JUDGE STEPHEN LOWNEY: No, no, no. You're asking for the hearing of the previous
matter. No, they're not.

[01:06:28]

MR. MARS: So the only way is appeal, right?

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Case No. 22FL003144 - Transcript of Hearing Before the Judge Stephen Lowney - February 7, 2024

1 **JUDGE STEPHEN LOWNEY:** The only way for you to have that order reversed is for you
2 to appeal, which you did not appeal. You apparently decided you weren't going to comply. I
3 know that you have reasons, but your reasons are irrelevant. The only thing that we are here
4 today is to talk about the fact that you are going to comply.

5 [01:07:00]

6 **MR. MARS:** Do I have any choice?

7 **JUDGE STEPHEN LOWNEY:** You do not have any choice. That's what I've been trying to
8 say. You do not have a choice. The court has a lot of choices. I should tell you that. The court
9 has a lot of choices on how it's going to enforce its orders. I'm trying to reason with you, and
10 I'm trying to get you to understand that it's in your best interest, in a lot of different ways, to
11 comply with these orders.

12 **MR. MARS:** I understand, Your Honor.

13 **JUDGE STEPHEN LOWNEY:** So here's what I want to hear.

14 **MR. MARS:** What should I do if my son will die after international abduction, becoming a
15 victim of the war in Ukraine?

16 [01:07:39]

17 **JUDGE STEPHEN LOWNEY:** I know you want the order changed. I know you want me to
18 change it. I'm not going to, and you are going to comply.

19 [01:07:55]

20 **JUDGE STEPHEN LOWNEY:** And just to be clear, because I want the record to be clear, the
21 request was for court order, Mr. Mars, to deliver to the court all legal documents regarding the
22 minor child.

23 **MS. ROBERTS:** Yes, to follow the court order from July trial.

24 **JUDGE STEPHEN LOWNEY:** And you are ordered to comply. To the letter, every part of
25 that order.

26 [01:08:24]

27 **MR. MARS:** Your Honor, what exactly is requested? And who should receive the documents
28 of my son?

MS. ROBERTS: The court order, Your Honor, is to deliver them to my office. They are to be
held in trust by my office.

JUDGE STEPHEN LOWNEY: Do you have the order?

MR. MARS: Your Honor, I don't have it, and I would raise to the attention of the court that
Nancy Roberts was requested to be disqualified, and I don't trust her with the life of my son.

-21-

Case No. 22FL003144 - Transcript of Hearing Before the Judge Stephen Lowney - February 7, 2024

EXHIBIT A-5

STATEMENT OF DISQUALIFICATION - JUDGE STEPHEN LOWNEY (February 20, 2024)

Description: Statement of Disqualification timely filed against Judge Stephen Lowney.

Date: February 20, 2024

ACCESS FULL DOCUMENT

Full PDF: <https://marsjustice.io/criminal-case/lowney-disqualification-2024-02-20.pdf>

Scan QR Code for instant download of the complete document:



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6 PER SE

(ENDORSED)
FILED
FEB 20 2024
Clerk of the Court
Superior Court of CA County of Santa Clara
BY J. RARAS DEPUTY

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
IN AND FOR THE COUNTY OF SANTA CLARA**

8 KOSTIANTYN MARS
9 Petitioner, Case No.: 22FL003144
10 vs. [Honorable Beth McGowen,
11 HANNA MARS, [Dept. 72 – Honorable Brooke A. Blecher,
12 Respondent. Supervising Judge of Superior Court of California]
13 [Dept. 79 – Hon. Stephen P. Lowney,
14 Judge to be served the Disqualification Statement]

15 **NOTICE OF PETITIONER'S VERIFIED
16 STATEMENT OF DISQUALIFICATION OF
17 SANTA CLARA SUPERIOR COURT JUDGE
18 STEPHEN P. LOWNEY
19 FOR IMPERMISSIBLE CONFLICT OF
20 INTEREST,
21 REQUEST FOR HIS DISQUALIFICATION,
22 STAY ON ALL HIS ORDERS UNTIL FINAL
23 JUDGMENT,
24 AND NULLIFICATION OF ALL HIS ORDERS
25 RETROACTIVELY BACK TO 10/31/2022**

26 [Statement of Disqualification and Memorandum of
27 Points and Authorities filed concurrently]
28 (Code Civ. Proc. 170.1(a)(6)(iii);
170.1(a)(3)(A); 170.3)

NOTICE OF DISQUALIFICATION STATEMENT RE: HON. STEPHEN P. LOWNEY
DISSOLUTION OF FAMILY MARS CASE NO.: 22FL003144

EXHIBIT A-6

ITEMS SEIZED FROM MINOR CHILD MAX MARS DURING ARREST - TESLA CYBERTRUCK WITH DONALD TRUMP, “WARRIOR KID” BOOK BY JOCKO WILLINK, DONUTS AND HOT CHOCOLATE - DENIAL OF CONTACT (June 14, 2024)

Description: Items seized from minor child Max Mars during Petitioner’s arrest, demonstrating denial of contact and freedom under color of law.

Date: June 14, 2024

ACCESS FULL DOCUMENT

Full PDF:

<https://marsjustice.io/criminal-case/seized-items-cybertruck-donald-trump-2024-06-14.pdf>

Scan QR Code for instant download of the complete document:





EXHIBIT A-7

**VIDEO RECORDING OF UNLAWFUL ARREST
BY OFFICER CHASE MARTIN
(BADGE #17209, SUNNYVALE PD, CA)
(June 14, 2024)**

Description: Video recording of unlawful arrest by Sunnyvale Police Department Officer Chase Martin (Badge #17209).

Date: June 14, 2024

ACCESS FULL VIDEO

Full Video:

https://drive.google.com/file/d/1O6yLk2-C_duS0uSko9erA9-ngP5xwnZ7/preview

Scan QR Code for instant access to full video:



EXHIBIT A-8

VOID AB INITIO BENCH WARRANT ISSUED BY JUDGE STEPHEN LOWNEY AFTER HIS DISQUALIFICATION AND THREATS OF MALICIOUS PROSECUTION (June 17, 2024)

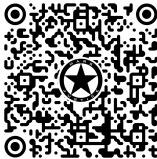
Description: Bench warrant issued by disqualified Judge Stephen Lowney after his disqualification (February 20, 2024) and threats of malicious prosecution (February 7, 2024).

Date: June 17, 2024

ACCESS FULL DOCUMENT

Full PDF: <https://marsjustice.io/criminal-case/lowney-bench-warrant-2024-06-17.pdf>

Scan QR Code for instant download of the complete document:



 SUPERIOR COURT OF CALIFORNIA
COUNTY OF SANTA CLARA

MINUTE ORDER

Kostiantyn Mars vs Hanna Mars 22FL003144 Date of Hearing: 06/17/2024	Hearing Start Time: 9:00 AM Hearing Type: OSC: Contempt Comments: Line 1-9
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Heard By: Lowney, Stephen
Courtroom Reporter: Genice Perez

Location: Department 79
Courtroom Clerk: True Parker
Court Interpreter:
Court Investigator:

Parties Present:
Mars, Hanna
Roberts, Nancy Lee

Respondent
Attorney
Limited Scope
Attorney

Exhibits:

Case is called at 9:02 am.

Petitioner- Kostiantyn Mars is not present.

Attorney Nancy Roberts and the respondent- Hanna Mars are personally present.

Respondent is assisted by Russian interpreter, Laura Mirzoyan (301297).

Respondent- Hanna Mars is sworn.

Court reporter reports on line 9 only, OSC: Contempt matter.

Line 1:
Respondent's request for Request for Order: Domestic Violence.

The Court finds today is the date and time set for the hearing on this matter. Petitioner- Kostiantyn Mars had notice and an opportunity to be heard, Mr. Mars has failed to appear.

The Court makes orders and GRANTS the restraining order as requested.

Respondent- Hanna Mars's request for a Restraining Order is granted; a DVRO is issued restraining Petitioner- Kostiantyn Mars for a period of 3 years, the Restraining Order expires 06-17-2027. The DVRO is issued under the same terms as the DVRO which includes Maksym Mars age 8 with the following modification: Petitioner- Kostiantyn Mars shall not call the police to tell them the child is abducted and abused.

Order to Not Abuse granted.
Restrained person must not:
Harass, attack, strike, threaten assault (sexually or otherwise), hit, follow, stalk, molest, destroy personal property, keep under surveillance, impersonate (on the in Internet, electronically or otherwise), block movements, annoy by phone or other electronic means (including repeatedly

Printed: 6/17/2024 06/17/2024 OSC: Contempt - 22FL003144 Page 1 of 4



SUPERIOR COURT OF CALIFORNIA
COUNTY OF SANTA CLARA

MINUTE ORDER

Line 8:

Petitioner's Request for Order: Bifurcate

The Court finds today is the date and time set for the hearing on this matter. Petitioner- Kostiantyn Mars had notice and an opportunity to be heard, Mr. Mars has failed to appear.

Petitioner's Request for Order: Bifurcate is DENIED.

Matter will go off calendar.

Line 9:

Respondent's OSC: Contempt

Reported by official Court reporter: Genice Perez

Matter is set for arraignment on the OSC: Contempt.

Attorney Nancy Roberts provides an update re: petitioner- Kostiantyn Mars; petitioner violated the restraining order on Friday and was arrested, petitioner may have bailed out.

The Court responded to Mr. Mars' email request; a follow-up email was sent to the petitioner denying his request for a continuance this morning.

The Court finds today is the date and time set for line 9 order to show cause on the contempt.

Petitioner- Kostiantyn Mars has failed to appear; the Court issues a civil bench warrant in the amount of \$5,000.00.

Attorney Nancy Roberts to prepare the restraining order after hearing.

The Clinic to prepare order after hearing for petitioner.

TO: KOSTIANTYN MARS
211 HOPE ST
MOUNTAIN VIEW, CA 94041

FROM: SUNNYVALE DPS
700 ALL AMERICA WAY
SUNNYVALE, CA 94086

Name: KOSTIANTYN MARS DOB: 04/20/1987
CDL: CA Y6231733 Sex: M Hair: BK Eyes: GR Height: 511 Weight: 230 Race: W
SMT:
PFN: EHP636 CII: A42242743 FBI:
CEN: 24017929 Docket: B2402220 Control Number: 002400020658
Complaint Agt: SUNNYVALE DPS Agt Case No: 244882 SVC Agt: SUNNYVALE DPS
Issue Date: 08/21/2024 Charges
(M)PC273.6(A) PR:

BAIL AMOUNT: 25000
Fingerprints Not Needed

Re: NOTICE OF BENCH WARRANT

Santa Clara County Superior Court has issued a Bench Warrant for the arrest of the person named above. This letter is to advise you of your options to clear the warrant. Please bring photo ID and follow the instructions checked below. For acceptable forms of payment or additional information regarding self-surrender processes and alternate locations, please contact the law enforcement agency noted at the top of this letter.

- ___ 1. Appear in person at the agency whose name appears at the top of this letter. You will sign a promise to appear and will be issued a new court appearance date.
- ___ 2. You are eligible to clear this warrant by paying the full bail amount noted above and forfeiting your right to appear in court.
- X 3. Appear in person and pay the full bail amount stated on the warrant OR be booked into county jail.
- ___ 4. This warrant requires you to SELF-SURRENDER at the Santa Clara County Main Jail located at 150 West Hedding Street, San Jose, CA 95110.

Thank you for your immediate attention to this matter. If you believe you have received this letter in error, please contact the law enforcement agency noted at the top.

ARREST WARRANT

PFN: EHP636

CII: A42242743

FBI: 5WA0EDJWP

WARRANT CONTROL NO: 2400025644

SUPERIOR COURT OF CALIFORNIA, COUNTY OF SANTA CLARA

THE PEOPLE OF THE STATE OF
CALIFORNIA,

Plaintiff,

vs.

Kostiantyn Mars
Konstantyne Mars
211 Hope St
Mountain View, CA 94041

Defendant

DOCKET NO: C2416667
DRIVERS LIC NO: CAY6231733
AGENCY CASE NO: 241650265Z

DESCRIPTION

BIRTHDATE: 04/20/1987
HEIGHT: 511 WEIGHT: 230
HAIR: Black EYES: Green SEX: M
RACE: White
REMARKS:
SERVICE AGCY:04300

THE PEOPLE OF THE STATE OF CALIFORNIA TO ANY PEACE OFFICER OF THE STATE:
COMPLAINT UNDER OATH HAVING BEEN MADE BEFORE ME BY:

M7860 Michael Mazon

SANTA CLARA COUNTY SHERIFF'S OFFICE

THAT THE OFFENSE OF:

CHARGES

(M) PC166(a)(4)

OF COUNTS: 1 FINEANCEMENTS

A MISDEMEANOR HAS BEEN COMMITTED, AND A PERSON USING
Kostiantyn Mars

THEREOF, YOU ARE THEREFORE COMMANDED TO ARREST THE ABOVE-NAMED DEFENDANT AND
BRING SAID DEFENDANT FORTHWITH BEFORE THE ENTITLED COURT.

☐ THIS WARRANT IS ELIGIBLE FOR NIGHT SERVICE PER SEC 840 PC.

DEFENDANT MAY BE RELEASED TO BAIL IN THE SUM OF \$ **\$15,000.00**

WITNESS MY HAND AND SEAL,

10/23/2024

/S/ Clark, L. Michael

Judge of the Superior Court
of California



HALL OF JUSTICE
190 WEST HEDDING STREET
SAN JOSE, CA 95110

MAILING ADDRESS IS:
SUPERIOR COURT
191 N. FIRST STREET
SAN JOSE, CA 95113

COURT APPEARANCE TIMES AND DATES
09:00 MONDAY THRU FRIDAY MISD
01:30 MONDAY THRU FRIDAY FEL

EXHIBIT A-10

SUNNYVALE POLICE DEPARTMENT - DENIAL OF ACCESS TO BODY CAMERA RECORDINGS OF POLICE OFFICERS COMMITTED UNLAWFUL ARREST (October 30, 2024)

Description: Denial by Sunnyvale Police Department of access to body camera recordings of police officers committed the unlawful arrest on June 14, 2024.

Date: October 30, 2024

ACCESS FULL DOCUMENT

Full PDF:

<https://marsjustice.io/criminal-case/sunnyvale-police-bodycam-recordings-denial-2024-10-30.pdf>

Scan QR Code for instant download of the complete document:



Follow up to your Access Sunnyvale service request: SR-00093342
CRM:002090001846

1 message

AccessSunnyvale AP <AccessSunnyvale@sunnyvale.ca.gov>
To: SR-00093342 [REDACTED]

Wed, Oct 30, 2024 at 9:17 AM

Hello Kostiantyn,

The City of Sunnyvale is in receipt of your public records act request dated 10/21/2024 for the following records: copy of police report 24-4882. We have determined that your request for records is not disclosable, for those records are unable to be released without a subpoena due to the nature of the charges.

I will be closing out this service request in the Access Sunnyvale system; however, should you have any questions please feel free to contact me at the Records Unit at 408-730-7101.



Follow us on:



Best Regards,

Deuel Galla (Pronouns: He/His)

Senior Records Specialist

Department of Public Safety

Phone: 408-730-7101

Fax: 408-730-7705

DGalla@Sunnyvale.ca.gov

Service Request details:

Service Request Number: SR-00093342

Submitted On: 10/21/2024 5:35 PM

Request Type: Public Records Request

Description: Hello, please provide police report, names, badge numbers, and bodycam records of police officers making arrest of Kostiantyn Mars on 06/14/2024 on address 1201 Sycamore Terrace 145 on allegations of violation of a restraining order.

Thank you

Initial Response Complete: No

EXHIBIT A-11

VIDEO RECORDINGS OF CRIMINAL COURT HEARINGS BEFORE JUDGES THOMAS KUHNLE AND BENJAMIN WILLIAMS (AUGUST 2024)

Description: Video recordings of criminal court hearings in which judges denied Petitioner a hearing on the merits despite his and counsel's presence in open court.

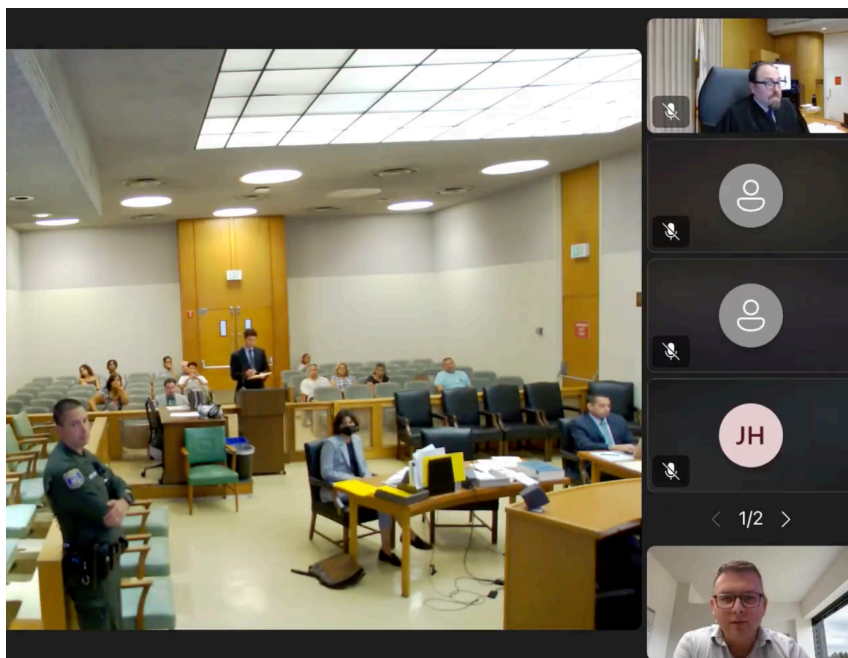
Key Procedural Violations:

Judge Williams denied the defendant and his attorney the opportunity to be heard on the merits of Criminal Case B2402220 and issued a bench warrant, despite both being present in open court and requesting a hearing and dismissal of the case.

This constitutes a violation of due process and denial of access to court. Applicable Law:

- U.S. Const. amend. XIV, § 1 (Due Process Clause)
- 42 U.S.C. § 1983 (Deprivation of constitutional rights under color of law)
- Cal. Const. art. I, § 7(a) (Due Process)
- Procedural due process requires meaningful opportunity to be heard before deprivation of liberty (Mathews v. Eldridge, 424 U.S. 319 (1976))

Date: August 2024



ACCESS FULL VIDEOS

- **August 15, 2024 (Kuhnle) Hearing**

Full Video:

https://drive.google.com/file/d/1DAaltUbRjYs_O_sUDpXiWYWExHtzG6ql/preview

Scan QR Code for instant access to full video:



- **August 19, 2024 (Williams) Hearing**

Full Video:

<https://drive.google.com/file/d/1dTvasJPaRW-MuYK9gpe0oagzWEdQEw73/preview>

Scan QR Code for instant access to full video:



- **August 21, 2024 (Williams) p.1**

Full Video:

https://drive.google.com/file/d/1Sn0_ZuVeTKEEEPIcN5eOSLtZ3CM4LFZ_/preview

Scan QR Code for instant access to full video:



- **August 21, 2024 (Williams) p.2 - Denial of hearing and issuance of bench warrant**

Full Video:

<https://drive.google.com/file/d/1e60zP91nn3hnodVQTVZB7xTjVwCBbVEC/preview>

Scan QR Code for instant access to full video:



AUTHENTICATION

All documents and recordings in this Exhibit A are true and correct copies or authentic records of the events described.

Respectfully submitted,

DATED: April 8, 2026


KOSTIANTYN MARS
Pro Se